

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3305

By: Steagall

AS INTRODUCED

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 1115, as last amended by Section 2, Chapter 370, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1115), which relates to vehicles required to be registered; prohibiting the backdating of registration period for late renewal registration; requiring registration be valid for certain time period from date of renewal; amending 47 O.S. 2021, Section 1132, as last amended by Section 75, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2025, Section 1132), which relates to vehicle registration fees; prohibiting the backdating of registration for late initial registrations; requiring registration be valid for certain time period from date of registration; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 1115, as last amended by Section 2, Chapter 370, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1115), is amended to read as follows:

Section 1115. A. Unless provided otherwise by statute, the following vehicles shall be registered annually: manufactured homes, vehicles registered with a permanent nonexpiring license plate pursuant to Section 1113 of this title, and commercial

1 vehicles registered pursuant to the installment plan provided in
2 subsection H of Section 1133 of this title. The following schedule
3 shall apply for such vehicle purchased in this state or brought into
4 this state by residents of this state:

5 1. Between January 1 and March 31, the payment of the full
6 annual fee shall be required;

7 2. Between April 1 and June 30, the payment of three-fourths
8 ($\frac{3}{4}$) the annual fee shall be required;

9 3. Between July 1 and September 30, the payment of one-half
10 ($\frac{1}{2}$) the annual fee shall be required; and

11 4. Between October 1 and November 30, one-fourth ($\frac{1}{4}$) the
12 annual fee shall be required.

13 License plates or decals for each year shall be made available
14 on December 1 of each preceding year for such vehicles. Any person
15 who purchases such vehicle or manufactured home between December 1
16 and December 31 of any year shall register it within thirty (30)
17 days from date of purchase and obtain a license plate or
18 Manufactured Home License Registration Decal, as appropriate, for
19 the following calendar year upon payment of the full annual fee.

20 Unless provided otherwise by statute, all annual license,
21 registration and other fees for such vehicles shall be due and
22 payable on January 1 of each year and if not paid by February 1
23 shall be deemed delinquent.

1 B. 1. All vehicles, other than those required to be registered
2 pursuant to the provisions of subsection A of this section, shall be
3 registered on a staggered system of registration and licensing on a
4 monthly series basis to distribute the work of registering such
5 vehicles as uniformly and expeditiously as practicable throughout
6 the calendar year unless otherwise provided in this section. After
7 the end of the month following the expiration date, the license and
8 registration fees for the new registration period shall become
9 delinquent. At the time of registration or renewal, the owner of
10 the vehicle may choose either an annual or a biennial registration
11 of the vehicle.

12 2. All fleet vehicles registered pursuant to new applications
13 approved pursuant to the provisions of Section 1120 of this title
14 shall be registered on a staggered system monthly basis.

15 3. Applicants seeking to establish Oklahoma as the base
16 jurisdiction for registering apportioned fleet vehicles shall have a
17 one-time option of registering for a period of not less than six (6)
18 months nor greater than eighteen (18) months. Subsequent renewals
19 for these registrants will be for twelve (12) months, expiring on
20 the last day of the month chosen by the registrant under the one-
21 time option as provided herein. In addition, registrants with
22 multiple fleets may designate a different registration month of
23 expiration for each fleet.

1 As used in this section, "fleet" shall have the same meaning as
2 set forth in the International Registration Plan.

3 4. Effective January 1, 2004, all motorcycles and mopeds shall
4 be registered on a staggered system of registration. Service
5 Oklahoma shall notify in writing, prior to December 1, 2003, all
6 owners of motorcycles or mopeds registered as of such date, who
7 shall have a one-time option of registering for a period of not less
8 than three (3) months nor greater than fifteen (15) months.
9 Subsequent renewals for these registrants will be for twelve (12)
10 months, expiring on the last day of the month chosen by the
11 registrant under the one-time option as provided herein. All
12 motorcycles and mopeds registered pursuant to new applications
13 received on or after December 1, 2003, shall also be registered
14 pursuant to the provisions of this paragraph.

15 5. Any three or more commercial vehicles owned by the same
16 person and previously registered in this state may be registered at
17 the same time regardless of the month or months in which they were
18 previously registered. The month in which the commercial vehicles
19 are newly registered shall be the month in which their registration
20 is renewed annually. If a commercial vehicle is registered pursuant
21 to this paragraph in the same calendar year in which it was
22 previously registered, license and registration fees shall be
23 prorated to account for the difference between the previous renewal
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1 month and the new renewal month and those fees shall be due at the
2 time of registration pursuant to this paragraph.

3 C. The following penalties shall apply for delinquent
4 registration fees:

5 1. For fleet vehicles required to be registered pursuant to the
6 provisions of Section 1120 of this title for which a properly
7 completed application for registration has not been received by the
8 Corporation Commission by the last day of the month following the
9 registration expiration date, a penalty of thirty percent (30%) of
10 the Oklahoma portion of the annual registration fee, or Two Hundred
11 Dollars (\$200.00), whichever is greater, shall be assessed. The
12 license and registration cards issued by the Corporation Commission
13 for each fleet vehicle shall be valid until two (2) months after the
14 registration expiration date;

15 2. For commercial vehicles registered under the provisions of
16 subsection B of this section, except those vehicles registered
17 pursuant to Section 1133.1 of this title, a penalty shall be
18 assessed after the last day of the month following the registration
19 expiration date. A penalty of twenty-five cents (\$0.25) per day
20 shall be added to the license fee of such vehicle and shall accrue
21 for one (1) month. Thereafter, the penalty shall be thirty percent
22 (30%) of the annual registration fee, or Two Hundred Dollars
23 (\$200.00), whichever is greater;

1 3. For new or used manufactured homes, not registered within
2 thirty (30) days from date of purchase or date such manufactured
3 home was brought into this state, a penalty equal to the
4 registration fee shall be assessed; or

5 4. For all vehicles, a penalty shall be assessed after the last
6 day of the month following the expiration date and no penalty shall
7 be waived by Service Oklahoma or any licensed operator except as
8 provided for in subsection H of Section 1133, subsection C of
9 Section 1127 of this title, Section 1-133.1a of this title, or when
10 the vehicle was stolen as certified by a police report or other
11 documentation as required by Service Oklahoma. A penalty of One
12 Dollar (\$1.00) per day shall be added to the license fee of such
13 vehicle, provided that the penalty shall not exceed One Hundred
14 Dollars (\$100.00). The renewed registration of the vehicle shall
15 not be backdated to the date of expiration. The renewed registration
16 shall be valid for the registration period selected by the owner,
17 whether annual or biennial, beginning on the date of renewal. Of
18 each dollar penalty collected pursuant to this subsection:

- 19 a. twenty-one cents (\$0.21) shall be apportioned as
20 provided in Section 1104 of this title,
21 b. twenty-one cents (\$0.21) shall be retained by the
22 licensed operator, and
23 c. fifty-eight cents (\$0.58) shall be deposited in the
24 General Revenue Fund.

1 D. In addition to all other penalties provided in the Oklahoma
2 Vehicle License and Registration Act, the following penalties shall
3 be imposed and collected by any Enforcement Officer of the
4 Corporation Commission upon finding any commercial vehicle being
5 operated in violation of the provisions of the Oklahoma Vehicle
6 License and Registration Act.

7 The penalties shall apply to any commercial vehicle found to be
8 operating in violation of the following provisions:

9 1. A penalty of not less than Fifty Dollars (\$50.00) shall be
10 imposed upon any person found to be operating a commercial vehicle
11 sixty (60) days after the end of the month in which the license
12 plate or registration credentials expire without the current year
13 license plate or registration credential displayed. Such penalty
14 shall not exceed the amount established by the Corporation
15 Commission pursuant to the provisions of subsection A of Section
16 1167 of this title. Revenue from such penalties shall be
17 apportioned as provided in Section 1167 of this title;

18 2. A penalty of not less than Fifty Dollars (\$50.00) shall be
19 imposed for any person operating a commercial vehicle subject to the
20 provisions of Section 1120 or Section 1133 of this title without the
21 proper display of, or, carrying in such commercial vehicle, the
22 identification credentials issued by the Corporation Commission as
23 evidence of payment of the fee or tax as provided in Section 1120 or
24 Section 1133 of this title. Such penalty shall not exceed the

1 amount established by the Corporation Commission pursuant to the
2 provisions of subsection A of Section 1167 of this title. Revenue
3 from such penalties shall be apportioned as provided in Section 1167
4 of this title; and

5 3. A penalty of not less than One Hundred Dollars (\$100.00)
6 shall be imposed for any person that fails to register any
7 commercial vehicle subject to the Oklahoma Vehicle License and
8 Registration Act. Such penalty shall not exceed the amount
9 established by the Corporation Commission pursuant to the provisions
10 of subsection A of Section 1167 of this title. Revenue from such
11 penalties shall be apportioned as provided in Section 1167 of this
12 title.

13 E. Service Oklahoma, or the Corporation Commission with respect
14 to vehicles registered under Section 1120 or Section 1133 of this
15 title, shall assess the registration fees and penalties for the year
16 or years a vehicle was not registered. For vehicles not registered
17 for two (2) or more years, the registration fees and penalties shall
18 be due only for the current year and one (1) previous year.

19 F. In addition to any other penalty prescribed by law, there
20 shall be a penalty of not less than Twenty Dollars (\$20.00) upon a
21 finding by an enforcement officer that:

22 1. The registration of a vehicle registered pursuant to Section
23 1132 of this title is expired and it is sixty (60) or more days
24 after the end of the month of expiration; or

1 2. The registration fees for a vehicle that is subject to the
2 registration fees pursuant to Section 1132 of this title have not
3 been paid.

4 Such penalty shall not exceed the amount established by the
5 Corporation Commission pursuant to the provisions of subsection A of
6 Section 1167 of this title. Revenue from such penalties shall be
7 apportioned as provided in Section 1167 of this title.

8 G. If a vehicle is donated to a nonprofit charitable
9 organization, the nonprofit charitable organization shall be exempt
10 from paying any current or past due registration fees, excise tax,
11 transfer fees, and penalties and interest. However, after the
12 donation, if the person donating the vehicle, or someone on behalf
13 of such person, purchases the same vehicle back from the nonprofit
14 charitable organization to which the vehicle was donated, such
15 person shall be liable for all current and past-due registration
16 fees, excise tax, title or transfer fees, and penalties and interest
17 on such vehicle.

18 H. Service Oklahoma shall promulgate rules and any necessary
19 procedures to establish an option for a biennial registration for
20 vehicles registered pursuant to paragraph 1 of subsection B of this
21 section.

22 1. Regardless of whether the vehicle owner elects annual or
23 biennial registration, the vehicle is still subject to all fees,
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1 fines, and penalties provided in the Oklahoma Vehicle License and
2 Registration Act.

3 2. For vehicle owners who elect biennial registration, the
4 annual registration fee shall be twice the annual registration fee
5 provided in the Oklahoma Vehicle License and Registration Act.

6 3. When processing biennial registrations, licensed operators
7 shall be entitled to retain twice the amounts provided in paragraphs
8 1 and 2 of subsection A of Section 1141.1 of this title and twice
9 the amount provided in paragraph 14 of subsection A of Section
10 1141.1 of this title for processing insurance verification
11 information.

12 SECTION 2. AMENDATORY 47 O.S. 2021, Section 1132, as
13 last amended by Section 75, Chapter 452, O.S.L. 2024 (47 O.S. Supp.
14 2025, Section 1132), is amended to read as follows:

15 Section 1132. A. For all vehicles, unless otherwise
16 specifically provided by the Oklahoma Vehicle License and
17 Registration Act, a registration fee shall be assessed at the time
18 of initial registration by the owner and annually thereafter, for
19 the use of the avenues of public access within this state in the
20 following amounts:

21 1. For the first through the fourth year of registration in
22 this state or any other state, Eighty-five Dollars (\$85.00);

23 2. For the fifth through the eighth year of registration in
24 this state or any other state, Seventy-five Dollars (\$75.00);

1 3. For the ninth through the twelfth year of registration in
2 this state or any other state, Fifty-five Dollars (\$55.00);

3 4. For the thirteenth through the sixteenth year of
4 registration in this state or any other state, Thirty-five Dollars
5 (\$35.00); and

6 5. For the seventeenth and any following year of registration
7 in this state or any other state, Fifteen Dollars (\$15.00).

8 The registration fee provided for in this subsection shall be in
9 lieu of all other taxes, general or local, unless otherwise
10 specifically provided.

11 On and after January 1, 2022, if a physically disabled license
12 plate is issued pursuant to paragraph 3 of subsection B of Section
13 1135.1 of this title, any registration fee required for such license
14 plate and the fee required pursuant to this subsection shall be
15 remitted at the same time and subject to a single registration
16 period. Upon receipt of a physically disabled license plate, the
17 standard issue license plate must be surrendered to Service Oklahoma
18 or the licensed operator. The physically disabled license plate
19 must be properly displayed as required for a standard issue license
20 plate and will be the sole license plate issued and assigned to the
21 vehicle. Service Oklahoma shall determine, by rule, a method for
22 making required fee adjustments when a physically disabled license
23 plate is obtained during a twelve-month period for which a
24 registration fee has already been remitted pursuant to this

1 subsection. The combination of fees in a single remittance shall
2 not alter the apportionment otherwise provided for by law.

3 B. For all-terrain vehicles and motorcycles used exclusively
4 for use off roads or highways purchased on or after July 1, 2005,
5 and for all-terrain vehicles and motorcycles used exclusively for
6 use off roads or highways purchased prior to July 1, 2005, which the
7 owner chooses to register pursuant to the provisions of Section
8 1115.3 of this title, an initial and nonrecurring registration fee
9 of Eleven Dollars (\$11.00) shall be assessed at the time of initial
10 registration by the owner. Nine Dollars (\$9.00) of the registration
11 fee shall be deposited in the Oklahoma Tax Commission Reimbursement
12 Fund through December 31, 2022, and beginning January 1, 2023, this
13 fee shall be deposited in the Service Oklahoma Reimbursement Fund.
14 Two Dollars (\$2.00) of the registration fee shall be retained by the
15 licensed operator. The fees required by subsection A of this
16 section shall not be required for all-terrain vehicles or
17 motorcycles used exclusively off roads and highways.

18 C. For utility vehicles used exclusively for use off roads or
19 highways purchased on or after July 1, 2008, and for utility
20 vehicles used exclusively for use off roads or highways purchased
21 prior to July 1, 2008, which the owner chooses to register pursuant
22 to the provisions of Section 1115.3 of this title, an initial and
23 nonrecurring registration fee of Eleven Dollars (\$11.00) shall be
24 assessed at the time of initial registration by the owner. Nine

1 Dollars (\$9.00) of the registration fee shall be deposited in the
2 Oklahoma Tax Commission Reimbursement Fund through December 31,
3 2022, and beginning January 1, 2023, this fee shall be deposited in
4 the Service Oklahoma Reimbursement Fund. Two Dollars (\$2.00) of the
5 registration fee shall be retained by the licensed operator. The
6 fees required by subsection A of this section shall not be required
7 for utility vehicles used exclusively off roads and highways.

8 D. There shall be a credit allowed with respect to the fee for
9 registration of a new vehicle which is a replacement for:

10 1. A new original vehicle which is stolen from the
11 purchaser/registrant within ninety (90) days of the date of purchase
12 of the original vehicle as certified by a police report or other
13 documentation as required by Service Oklahoma; or

14 2. A defective new original vehicle returned by the
15 purchaser/registrant to the seller within six (6) months of the date
16 of purchase of the defective new original vehicle as certified by
17 the manufacturer.

18 The credit shall be in the amount of the fee for registration
19 which was paid for the new original vehicle and shall be applied to
20 the registration fee for the replacement vehicle. In no event will
21 the credit be refunded.

22 E. Upon every transfer or change of ownership of a vehicle, the
23 new owner shall obtain title for and, except in the case of salvage
24 vehicles and manufactured homes, register the vehicle within thirty

1 (30) days of change of ownership and pay a transfer fee of Fifteen
2 Dollars (\$15.00) in addition to any other fees provided for in the
3 Oklahoma Vehicle License and Registration Act. No new decal shall
4 be issued to the registrant. Thereafter, the owner shall register
5 the vehicle annually on the anniversary date of its initial
6 registration in this state and shall pay the fees provided in
7 subsection A of this section and receive a decal evidencing such
8 payment. Provided, used motor vehicle dealers shall be exempt from
9 the provisions of this section.

10 F. In the event a new or used vehicle is not registered, titled
11 and tagged within thirty (30) days from the date of transfer of
12 ownership, the penalty for the failure of the owner of the vehicle
13 to register the vehicle within thirty (30) days shall be One Dollar
14 (\$1.00) per day, provided that in no event shall the penalty exceed
15 One Hundred Dollars (\$100.00). No penalty shall be waived by
16 Service Oklahoma or any licensed operator except as provided in
17 subsection C of Section 1127 of this title, or when it can be shown
18 the vehicle was stolen as certified by a police report or other
19 documentation as required by the Oklahoma Tax Commission. The
20 registration of the vehicle shall not be backdated to the date of
21 when registration should have been made pursuant to this subsection.
22 The registration shall be valid for the registration period selected
23 by the owner, whether annual or biennial, beginning on the date of
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1 registration. Of each dollar penalty collected pursuant to this
2 subsection:

3 1. Twenty-one cents (\$0.21) shall be apportioned as provided in
4 Section 1104 of this title;

5 2. Twenty-one cents (\$0.21) shall be retained by the licensed
6 operator; and

7 3. Fifty-eight cents (\$0.58) shall be deposited in the General
8 Revenue Fund.

9 SECTION 3. This act shall become effective November 1, 2026.
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